

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
Lionel Beato

Plaintiff

-against-

City of New York and New York City Police Department

Defendants
-----X

Index Number: 21355/2013 E
Date Purchased: 4/15/13
Date Filed:

SUMMONS

2013-010265

Plaintiff's residence is:

1382 Crotona Avenue

Apartment 6H

Bronx, NY 10456

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose and defendant resides in Bronx County.

Dated: April 8, 2013
New York, NY

Yours, etc.,

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiff
505 Eighth Avenue
Suite 701
New York, NY 10018
(646) 256-1007

To: City of New York
New York City Police Department

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
Lionel Beato

Plaintiff
-against-

VERIFIED COMPLAINT

City of New York and New York City Police Department :

Defendants.
-----X

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

- K 1. That at all times hereinafter mentioned, Plaintiff Lionel Beato, (hereinafter referred to a
"BEATO") is resident of Bronx County, State of New York.
- K 2. That at all times hereinafter mentioned, Police Officer Jodi Brown, (hereinafter referred
to as "BROWN") was employed by the New York City Police Department.
- K 3. That at all times hereinafter mentioned, the police officers involved in the Plaintiff's
arrest, (hereinafter referred to as "POLICE OFFICERS") were employed by the New York City
Police Department.
- ✓ 7 4. That at all times hereinafter mentioned, Defendant City of New York, is a municipal
corporation organized and existing under the laws of the State of New York, with a principal
place of business located at 1 Centre Street, County of New York State of New York.
- ✓ 7 5. That at all times hereinafter mentioned, Defendant New York City Police Department, is
an agency created and maintained by the above municipal government.

3 6. On or after March 6, 2012 and before April 25, 2012 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiff's claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

3 7. On or about October 25, 2012 a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiff testified and set forth the facts underlying Plaintiff's claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

K 8. That on or about January 25, 2012, at approximately 3:00PM, in the vicinity of Longfellow Avenue and East 173 Street, Bronx, Plaintiff walked with two of his friends into a grocery store.

K 9. That after they entered the store, BROWN and POLICE OFFICERS entered the above mentioned grocery store and ordered Plaintiff and his two friends to exit the store.

K 10. That after Plaintiff exited the grocery store, Plaintiff was placed under arrest and handcuffed by BROWN.

D 11. That at no time prior to Plaintiff's arrest was he engaged in any illegal conduct.

D 12. That at no time before or during his arrest was Plaintiff in possession of anything of illegal nature.

K 13. That Plaintiff, after he was arrested was transported to the 42 precinct in Bronx County where he was held in a cell with numerous other males for several hours.

- K 14. That while at the 42 precinct Plaintiff was strip searched and that nothing of an illegal nature was found on his person or in his possession.
- K 15. That after being held in a cell for several hours, Plaintiff was removed to Central Booking, Bronx County Criminal Court, located at 215 East 161 Street, Bronx, NY.
- D 16. That while inside of Central Booking Plaintiff was forced to remain inside of a holding cell with numerous other men.
- D 17. That while inside of Central Booking Plaintiff was forced to remain inside of a holding cell that did not have a working bathroom.
- D 18. That while inside of Central Booking Plaintiff was subjected to harassment from the other men inside of the cells.
- K 19. That on January 26, 2012 Plaintiff was arraigned on docket 2012BX005474 for Criminal Sale of a Controlled Substance in the 5th Degree, a Class a C felony, Criminal Possession of a Controlled Substance in the 5th Degree, a class D felony and Criminal Possession in the 7th Degree, class A misdemeanor.
- K 20. That after Plaintiff's arraignment, he was released on his own recognizance and the case was adjourned to March 6, 2012.
- K 21. That when Plaintiff returned to court on March 6, 2012, the case was dismissed upon application of the Office of the District Attorney.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

- D 22. That Defendants, POLICE OFFICERS and BROWN acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

23. That the actions of the Defendants, POLICE OFFICERS and BROWN constituted unreasonable deprivation of liberty without due process of law.
24. That as a result of the actions by Defendants, POLICE OFFICERS and BROWN, Plaintiff was traumatized and fears for her physical safety when she sees and encounter members of the New York City Police Department from the day of her arrest and onward.
25. That as a result of the Defendants, POLICE OFFICERS and BROWN' actions, Plaintiff has been unable to sleep.
26. That as a result of the Defendants, POLICE OFFICERS' and BROWN's actions, Plaintiff missed several days from work.
27. That as a result of the Defendants, POLICE OFFICERS and BROWN's actions Plaintiff sustained damage to her person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

28. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 27, as if more fully stated herein at length.
29. The intentional verbal abuse, false arrest and false imprisonment by Defendants, POLICE OFFICERS and BROWN violated the rights of the Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.
30. Defendants having no lawful authority to arrest Plaintiff, did, nevertheless, unlawfully arrest Plaintiff with actual malice toward her and with willful and wanton indifference to and

deliberate disregard for her constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AS AGAINST THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT

8 31. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 30, as if more fully stated herein at length.

D 32. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT

8 33. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 34, as if more fully stated herein at length.

D 34. Plaintiff was verbally abused, falsely arrested and falsely imprisoned by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants, POLICE OFFICERS and BROWN are individually liable. The verbal abuse, false arrest and false imprisonment on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

8 35. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 34, as if more fully stated herein at length.

K 36. At all times pertinent hereto, POLICE OFFICERS and BROWN were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

D 37. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that POLICE OFFICERS and BROWN committed within the scope of his employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

8 38. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 37, as if more fully stated herein at length.

D 39. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

8 40. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 41, as if more fully stated herein at length.

41. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

42. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

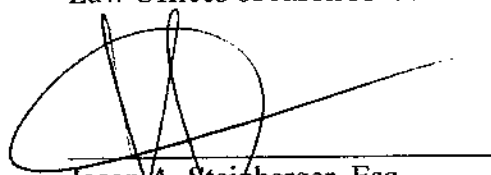
On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

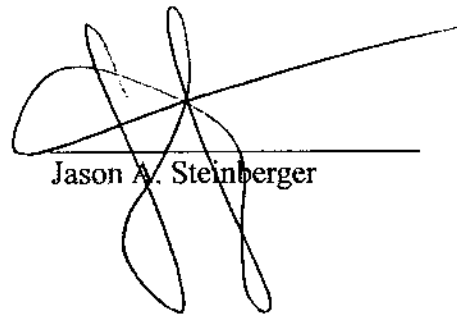


Jason A. Steinberger, Esq.
Attorney for Plaintiff
505 Eighth Avenue
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New York, NY 10018
(646) 256-1007

STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: April 8, 2013



Jason A. Steinberger